

20260801143415_Assignment_474_Content_Document_20260617015442233PM_(1)

SANJIVANI UNIVERSITY

Department of Cyber Security

ASSIGNMENT – II

International IP Instruments, WIPO, UNESCO & IP Marketing

Subject: Intellectual Property Rights (CS-601) | Max. Marks: 50 Marks | Time: 1.5 Hours

Student Details:

Section A – Short Answer Questions (Attempt ALL 5 Questions × 2 Marks = 10 Marks)

Q1. What is the Berne Convention? State the year it was adopted and its most important principle. [2 Marks]

Answer:

Q2. Expand PCT. What is the main purpose of the Patent Cooperation Treaty? [2 Marks]

Answer:

Q3. What does the © symbol signify under the Universal Copyright Convention? What three elements must accompany it? [2 Marks]

Answer:

Q4. Define 'National Treatment' as used in international IP treaties. In which two major conventions does this principle appear? [2 Marks]

Answer:

Q5. State two ways in which WIPO's role differs from UNESCO's role in the field of Intellectual Property. [2 Marks]

Answer:

Section B – Medium Answer Questions (Attempt ANY 4 Questions × 5 Marks = 20 Marks)

Q6. Explain the three core principles of the Paris Convention (1883): National Treatment, Right of Priority, and Common Rules. Why was the Paris Convention needed in 1883? [5 Marks]

Answer:

Q7. Describe the two phases of the PCT application process — the International Phase and the National Phase. What are the key benefits of the PCT system for an inventor seeking protection in multiple countries? [5 Marks]

Answer:

Q8. Discuss the role of trademarks and copyright in marketing strategy. How do geographical indications function as marketing tools? Support your answer with relevant examples. [5 Marks]

Answer:

Q9. Compare the Berne Convention (1886) and the Universal Copyright Convention (1952) in terms of their origin, key principles, minimum protection term, and current relevance. Which is more significant today and why? [5 Marks]

Answer:

Q10. Explain the TRIPS Agreement's approach to pharmaceutical patents. What is the Doha Declaration (2001) and what flexibilities does it provide to developing countries regarding access to medicines? [5 Marks]

Answer:

Section C – Long Answer / Essay Questions (Attempt ANY 2 Questions × 10 Marks = 20 Marks)

Q11. Write a comprehensive essay on the TRIPS Agreement (1994). Your answer must cover: (a) The background and political context of TRIPS — why developed countries pushed for it and what developing countries feared; (b) The eight major categories of IP covered under TRIPS and the minimum standards required for each; (c) Transition periods provided to developing and least developed countries; (d) TRIPS flexibilities including compulsory licensing, parallel imports, and Bolar exceptions; (e) The overall impact of TRIPS on global IP governance and the balance between private rights and public interest. Include at least two real-world examples or disputes. [10 Marks]

Answer:

Q12. Present a detailed case study analysis of the World Intellectual Property Organization (WIPO) and UNESCO and their respective roles in the international IP system. Your answer must cover: (a) The historical origins and establishment of WIPO (from BIRPI to UN specialized agency); (b) WIPO's key functions — treaty administration, global IP services (PCT, Madrid, Hague), capacity building, and policy dialogue; (c) WIPO's response to the digital age including the 1996 Internet Treaties and domain name dispute resolution; (d) UNESCO's involvement in copyright, cultural heritage protection (2003 and 2005 Conventions), and open access advocacy; (e) Areas of cooperation and tension between WIPO and UNESCO; (f) Critical evaluation of WIPO's Development Agenda (2007) and whether it has adequately addressed developing country concerns. [10 Marks]

Answer:

— End of Assignment II —

Evaluator's Signature: _____ Total Marks Awarded: _____ / 50